

SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present:

Mr. Justice Muhammad Shafi Siddiqui
Mr. Justice Miangul Hassan Aurangzeb

Civil Petition No. 4168 of 2022

*[Against judgment dated 17.10.2022 of the
Peshawar High Court, D.I. Khan Bench,
passed in C.R. No.82-D/2016]*

Ghulam Abbas. ... Petitioner

Versus

Abdul Sattar and another. ... Respondents

For the Petitioner: Syed Mastan Ali Zaidi, ASC.

For the Respondents: Mr. Saleem Ullah Khan Ranazai, ASC.

Date of Hearing: 21.05.2026.

ORDER

Muhammad Shafi Siddiqui, J. This petition for leave to appeal, under Article 185(3) of the Constitution of the Islamic Republic of Pakistan, 1973, is directed against the judgment dated 17.10.2022 passed by the Peshawar High Court, Dera Ismail Khan Bench, whereby the civil revision petition filed by the petitioner was dismissed and the concurrent findings recorded by the courts below, dismissing the suit for possession through right of pre-emption, were maintained.

2. The facts, in brief, are that the petitioner instituted a suit for possession through right of pre-emption in respect of the suit property measuring 4 Kanals, situated in Mouza Kurar, Tehsil Paharpur, District Dera Ismail Khan, on the basis of his alleged superior right as co-sharer and contiguous owner. The case set up by the petitioner was that respondents

No.1 to 3 purchased the suit property through mutation No.1630 dated 23.08.2005 for a sale consideration of Rs.60,000/-, though an amount of Rs.1,40,000/- was reflected in the mutation with the object of defeating his right of pre-emption. It was further the case of the petitioner that he acquired knowledge of the said sale on 28.08.2005 at about 05:00 p.m. through one Rasheed Ahmad, whereupon he immediately exercised *Talb-i-Muwathibat* and thereafter performed *Talb-i-Ishhad* in the presence of witnesses by issuing notices to the vendees through registered post. The petitioner maintained that the *Talbs* were duly performed in accordance with law and within the prescribed time. Based on the pleadings of the parties, the learned trial Court framed issues, and the parties led their respective evidence. Upon conclusion of the trial, the learned Civil Judge, Paharpur, vide judgment and decree dated 30.03.2011, dismissed the suit of the petitioner. While returning findings in favour of the petitioner on certain issues, including his status as co-sharer and the question of limitation, the learned trial Court non-suited him on the ground that he had failed to establish the due performance of *Talb-i-Ishhad* in accordance with Section 13(3) of the Khyber Pakhtunkhwa Pre-emption Act 1987. Feeling aggrieved, the petitioner preferred an appeal before the learned Additional District Judge, Paharpur, which was dismissed vide judgment dated 19.03.2016, maintaining the findings recorded by the trial Court. The petitioner thereafter filed a civil revision petition before the Peshawar High Court, which too was dismissed vide impugned judgment dated 17.10.2022, whereby the concurrent findings of the courts below were upheld.

3. Learned counsel for the petitioner contended that the courts below have misread and non-read the evidence available on record while non-suited the petitioner. It was argued that the petitioner had duly performed

the requirements of *Talb-i-Muwathibat* and *Talb-i-Ishhad* in accordance with law and had also produced documentary as well as oral evidence in support thereof, including notices, postal receipts, and statements of witnesses, which were not properly appreciated by the courts below. It was further contended that the omission to mention the exact date of *Talb-i-Ishhad* in the plaint was not fatal to the claim, particularly when the said *Talb* was otherwise established through evidence on record. Learned counsel maintained that the courts below adopted a strictly formal approach in the matter, which resulted in the denial of relief despite the petitioner having established his right through evidence.

4. Learned counsel for the respondents, on the other hand, supported the impugned judgment and contended that the petitioner had failed to comply with the mandatory requirements of *Talbs* as envisaged under the law governing pre-emption. It was argued that the date of *Talb-i-Ishhad* was not mentioned in the plaint, which omission was fatal to the claim, as the performance of *Talbs* is a condition precedent for the enforcement of the right of pre-emption and must be specifically pleaded and proved. Learned counsel further contended that the evidence produced by the petitioner was insufficient to establish the due performance of *Talb-i-Ishhad*, particularly in the absence of proof regarding the dispatch and service of notice upon the vendees. It was maintained that the concurrent findings recorded by the courts below are based on proper appreciation of the evidence and do not suffer from any illegality or perversity so as to warrant interference by this Court.

5. We have heard the learned counsel for the parties at considerable length and have perused the material available on record. The controversy in

the instant case revolves around the performance of *Talbs*, particularly *Talb-i-Ishhad*, as required under the law governing pre-emption, and the effect of non-mentioning of the date thereof in the plaint.

6. In the case of Muhammad Riaz v. Muhammad Ramzan (2023 SCMR 1305), this Court examined the requirements relating to the proof of *Talb-i-Muwathibat* and *Talb-i-Ishhad* and the consequences of failure to establish the same through cogent evidence. It was observed that neither of the two witnesses deposed regarding the date on which the petitioner made *Talb-i-Muwathibat*, and further that neither of the two witnesses deposed any specific date on which *Talb-i-Ishhad* was made. The Court also noted that no receipt of acknowledgement due was produced in evidence, nor was any evidence or witness brought to show that the respondents (vendees) had refused to be served with the notice. In view thereof, the suit for possession through pre-emption was held to have been rightly dismissed for failure to prove the mandatory requirements of *Talbs* in accordance with law.

7. In Sardar Muhammad (deceased) through LRs v. Taj Muhammad (deceased) through LRs and others (2023 SCMR 1113), this court settled the legal position regarding the mandatory nature of *Talbs* in a suit for pre-emption. It was unequivocally held that the right of pre-emption is a very weak right and, therefore, to succeed in a suit for pre-emption, the first and the foremost condition is that the plaintiff has to plead that before filing the suit, he had fulfilled the requirements of *Talbs*, and thereafter he has to prove the performance of *Talb-i-Muwathibat* and *Talb-i-Ishhad*. The Court further laid down that for proving *Talb-i-Muwathibat*, there must be a specific time, date, and place of knowledge pleaded in the plaint, which is then to be followed by the sending of notice through registered post to the vendees.

Emphasising the strict consequences of non-compliance, it was held in clear terms that if the performance of a single *Talb* skips or is not proved, the superstructure and edifice of the suit fall, on the ground. The Court also examined the requirement of *Talb-i-Ishhad* and held that service of notice must be proved strictly in accordance with the law. It was reiterated that the service of *Talb-i-Ishhad* is a prerequisite, and if the performance of the same is not proved beyond any shadow as well as in the prescribed form, then the whole structure falls on the ground.

8. In *Mian Pir Muhammad and another v. Faqir Muhammad through L.Rs. and others* (PLD 2007 SC 302), this Court held that it would be mandatory to mention in the plaint the date, place and time of performance of *Talb-i-Muwathibat* because from such date the time provided by the statute, i.e., fourteen days, could be calculated, and that if there is no mention of the date, place and time of *Talb-i-Muwathibat*, it would be very difficult to give full effect to the statutory scheme and there would be every possibility that the pre-emptor may attempt to get a latitude by claiming any date of performance in his statement before the Court. It was further held that the performance of both these *Talbs* successfully is *sine qua non* for getting a decree in a pre-emption suit. The Court ultimately approved the view that a plaint wherein the date, place, and time of *Talb-i-Muwathibat* and the date of issuing notice of performance of *Talb-i-Ishhad* are not provided would be fatal for the pre-emption suit. The said principle has been consistently followed and, in the present case, has rightly been relied upon and endorsed by both the learned trial Court as well as the learned Appellate Court while non-suiting the petitioner.

9. In Ijaz Ahmed v. Noor ul Ameen (2022 SCMR 1522), this Court delineated the scope and limitations of revisional jurisdiction under Section 115, C.P.C. It was held that the revisional Court is not vested with unlimited authority to reappraise evidence or disturb concurrent findings merely on the basis of a different possible view. Rather, its jurisdiction is confined to examining jurisdictional defects, namely, where the Court below has exercised a jurisdiction not vested in it by law, or has failed to exercise jurisdiction so vested, or has acted in the exercise of its jurisdiction illegally or with material irregularity, including procedural errors affecting the ultimate decision. The Court further emphasised that such jurisdiction, though exceptional in nature, is to ensure supervisory correction and not to substitute findings of fact. It was thus reiterated that concurrent findings of fact recorded by the Courts below, if based on proper appreciation of evidence and not suffering from misreading, non-reading, illegality, or material irregularity, are not open to interference in revisional jurisdiction.

10. Applying the afore-referred principles to the facts of the present case, it becomes evident that the petitioner has failed to satisfy the mandatory requirements governing the exercise of the right of pre-emption. Admittedly, the plaint does not disclose the date of performance of Talb-i-Ishhad, which omission, in view of the law laid down in Mian Pir Muhammad (*supra*), is fatal to the claim. The requirement of specifically pleading the essential particulars of *Talbs* is not a mere technical formality but is intrinsically linked to the statutory scheme under Section 13(3) of the Khyber Pakhtunkhwa Pre-Emption Act 1987 and failure to do so renders the claim legally deficient at the very threshold. Even otherwise, the petitioner has not been able to establish through cogent and reliable evidence the due performance of *Talb-i-Ishhad* in accordance with law. The concurrent

findings recorded by the learned trial Court, the learned Appellate Court, and affirmed by the High Court clearly demonstrate that neither the factum of proper service of notice upon the vendees was proved nor was the evidence produced sufficient to meet the strict standard required in such cases. The principles enunciated in Sardar Muhammad (*supra*) and Muhammad Riaz (*supra*) squarely apply, whereby failure to prove the performance of *Talbs* in the manner prescribed results in the collapse of the entire claim of pre-emption. Furthermore, no jurisdictional defect, illegality, or material irregularity has been pointed out in the impugned judgment so as to warrant interference in the exercise of this Court's jurisdiction, particularly in view of the settled law laid down in Ijaz Ahmed (*supra*) regarding the limited scope of revisional jurisdiction. In these circumstances, the findings recorded by the courts below are based on proper appreciation of the evidence and are fully in consonance with the settled principles of law, thus calling for no interference by this Court.

11. For what has been discussed above, this petition being devoid of merit is dismissed and leave to appeal is refused.

Judge

Judge

Islamabad:
21.05.2026

Approved for Reporting
[Simra Sohail, L.C]